

Non Judicial Settlement Agreement

Non-Judicial Settlement Agreement
Flanagan Family 321 Trust

Pursuant to 18-B M.R.S. Section 111 (Maine Uniform Trust Code)

Trust: Flanagan Family 321 Trust
Settlor: Dorothy E. Flanagan (deceased), Ellsworth, Maine
Date of Trust Agreement: 2005
Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)
Deed Reference: TR 31 PG 07 PC 10
Trustees: John M. Flanagan and Christopher J. Flanagan, Successor Co-Trustees
Date of Agreement: _____, 2026

I. Parties

This Non-Judicial Settlement Agreement ("Agreement") is entered into by and among all interested parties.

Current Beneficiaries (Settlor's Living Children):

1. Mary Jean Foss
2. John M. Flanagan
3. Jane E Birckhead
4. Elizabeth (Betsy) Young
5. Christopher J. Flanagan

Successor Beneficiaries and Forfeiting Party:

6. Jennifer Yommer (daughter of Mary Jean Foss)
7. Martha Foss (daughter of Mary Jean Foss)
8. Joseph M Birckhead (son of Jane E Birckhead)
9. Diana E Birckhead (daughter of Jane E Birckhead; forfeiting party)

Affected Persons (Granted Use Rights Under This Agreement):

10. Edward Young (son of Elizabeth Young)
11. Jack Young (son of Elizabeth Young)

Successor Co-Trustees:

12. John M. Flanagan
13. Christopher J. Flanagan

II. Authority

This Agreement is executed pursuant to 18-B M.R.S. Section 111 of the Maine Uniform Trust Code.

18-B M.R.S. Section 111(4) provides that a non-judicial settlement agreement is valid only to the extent it is consistent with the material purposes of the trust.

The parties represent that the terms of this Agreement are consistent with the material purposes of the trust.

- a. Benefiting the Settlor's children, grandchildren, and more remote descendants, in that order of priority (Recitals of Trust Agreement).
- b. Preserving the Camp Property for the use and enjoyment of the Settlor's descendants (Article V, Section 5.1).
- c. Protecting the Trust property from alienation to outside parties (Article VII).

All modifications herein keep the beneficial interests within the Settlor's family line and are for the benefit of the trust.

III. Purpose

The parties enter into this Agreement to formalize the following modifications to the administration of the trust:

- A. The forfeiture of Elizabeth (Betsy) Young's beneficial interest and the grant of a lifetime use right to her and her children.
- B. The transfer of Mary Jean Foss's beneficial interest to her children.
- C. The transfer of Jane E Birckhead's beneficial interest to Joseph M Birckhead, with Diana E Birckhead's forfeiture.
- D. The clarification of spousal rights upon the death of a beneficiary.
- E. The establishment of a simplified mechanism for future trustee transitions that can be completed without retaining an attorney.

Each of these matters is set forth in detail below and in the attached Exhibits.

IV. Betsy Young Interest Forfeiture and Lifetime Use Right

A. Forfeiture

Elizabeth (Betsy) Young voluntarily forfeits her entire beneficial interest in the Flanagan

This forfeiture extends to her heirs, Edward Young and Jack Young, who likewise forfeit any

B. Consideration

In consideration for this forfeiture and in exchange for being released from all financial o

1. One (1) aggregate week of summer use of the Camp Property per calendar year, for the remainder of their respective lifetimes.
2. This use right is personal and non-transferable. It may not be assigned, sold, or conveyed to any person.
3. The specific dates of use shall be requested before the beginning of each summer season. The Successor Co-Trustees will make every reasonable effort to accommodate the requested dates in coordination with the schedules of all active beneficiaries.
4. All scheduling is subject to the discretion of the Co-Trustees.

C. No Claim to Proceeds

This forfeiture includes any and all current and future claims to:

Sale proceeds, equity, or distributions should the Property be sold in whole or in part under Article 5.5 or otherwise.

Any right to purchase the Camp Property under Article 5.6.

Any right to participate in voting for or against the sale of the Camp Property under Article 5.5.

Any right to nominate or vote for the removal of a Trustee under Article 10.2.

D. Redistribution

The beneficial interest formerly held by Elizabeth (Betsy) Young is hereby redistributed equ

Mary Jean Foss branch: additional 5%
John M. Flanagan: additional 5%
Jane E Birckhead branch: additional 5%
Christopher J. Flanagan: additional 5%

Following this redistribution, each of the four remaining branches holds a 25% beneficial interest in the Flanagan Family Trust.

E. Re-Entry Provision

If Elizabeth (Betsy) Young or her heirs desire to return to being active beneficiaries of the Trust, they must first obtain the written consent of the Trust.

The complete terms of this forfeiture and use right are set forth in the attached Exhibit A.

V. Transfer of Beneficial Interest -- Mary Jean Foss

Mary Jean Foss hereby transfers her entire 25% beneficial interest in the Flanagan Family Trust to her daughters, Jennifer Yommer and Martha Foss.

Jennifer Yommer: 12.5% beneficial interest
Martha Foss: 12.5% beneficial interest

Effective on the date of this Agreement:

1. Jennifer Yommer and Martha Foss assume all rights of their mother's beneficial interest, including the right to use the Camp Property, the right to vote as beneficiaries, and the right to receive income distributions under Article IV.
2. Jennifer Yommer and Martha Foss assume all obligations associated with this interest, including the obligation to pay their proportionate share of expenses under Article 5.3.
3. Mary Jean Foss relinquishes her beneficial interest, voting rights, and financial obligations under the Trust.

The complete terms of this transfer are set forth in the attached Exhibit B.

VI. Transfer of Beneficial Interest -- Jane E Birckhead

Jane E Birckhead hereby transfers her entire 25% beneficial interest in the Flanagan Family Trust to her children, Joseph M Birckhead and Diana E Birckhead.

Joseph M Birckhead: 25.0% beneficial interest
Diana E Birckhead: 0.0% beneficial interest

Effective on the date of this Agreement:

1. Joseph M Birckhead assumes all rights of his mother's beneficial interest, including the right to use the Camp Property, the right to vote as beneficiaries, and the right to receive income distributions under Article IV.
2. Joseph M Birckhead assumes all obligations associated with this interest, including the obligation to pay his proportionate share of expenses under Article 5.3.
3. Jane E Birckhead relinquishes her beneficial interest, voting rights, and financial obligations under the Trust.
4. Diana E Birckhead forfeits and relinquishes any current beneficial interest, voting rights, use rights, purchase rights, sale-proceeds claims, and financial obligations she may hold or claim through Jane E Birckhead's branch, subject only to the re-entry provision stated in Exhibit C.

The complete terms of this transfer are set forth in the attached Exhibit C.

VII. Clarification of Spousal Rights

The Trust Agreement does not specifically address the rights and responsibilities of the spouse.

The parties agree to the following clarification:

A. Spousal Inheritance

In the event of the death of an active beneficiary who has no living heirs or no adult heirs:

1. The deceased beneficiary's beneficial interest in the Trust.
2. All rights associated with that interest, including the right to use the Camp Property and the right to vote as a beneficiary.
3. All obligations associated with that interest, including the obligation to pay the proportionate share of expenses under Article 5.3.

B. Continuation of Family Line

Upon the death of the surviving spouse, or if the surviving spouse chooses to no longer participate:

C. No Heirs or Descendants

If the original beneficiary has no children or descendants, and the surviving spouse has died,

D. Interaction with Article 5.7

This clarification is intended to supplement, not replace, Article 5.7. The right of first refusal

The complete terms of this clarification are set forth in the attached Exhibit D.

VIII. Simplified Future Trustee Succession

To minimize future legal costs and administrative delays, the parties agree to establish a simplified

The process requires:

1. A written Resignation of Trustee (or documentation of vacancy due to death or incapacity) delivered to all active beneficiaries.
2. A majority vote of the active beneficiaries to elect the successor trustee(s), documented in a written Record of Beneficiary Vote with signatures.
3. A written acceptance by the successor trustee(s).
4. The execution and recording of a new Affidavit of Successor Trustee in the Hancock County Registry of Deeds pursuant to 18-B M.R.S. Section 1013.
5. Per Article 12.1 of the Trust Agreement, a copy of such instruments certified by a notary public shall be deemed sufficient proof of authority for all third parties (banks, insurance companies, and government agencies).

The current Co-Trustees shall maintain template documents from this transition (Phases 1-3)

This mechanism also establishes a process for the removal of a trustee by majority vote of the

The complete terms of this mechanism are set forth in the attached Exhibit E.

IX. Updated Ownership Structure

Following the execution of this Agreement, the beneficial interests in the Flanagan Family Trust

John M. Flanagan	25.0%
Christopher J. Flanagan	25.0%
Jennifer Yommer	12.5%
Martha Foss	12.5%
Joseph M Birckhead	25.0%

Total	100.0%

Elizabeth (Betsy) Young, Edward Young, and Jack Young:
 Lifetime use right of one (1) aggregate week per summer.
 No beneficial interest. No voting rights. No financial obligations.

Mary Jean Foss: No beneficial interest (transferred to children).
 Jane E Birckhead: No beneficial interest (transferred to children).

X. Active Beneficiaries and Voting

Following this Agreement, the active beneficiaries entitled to vote on Trust matters shall be

1. John M. Flanagan (25%)
2. Christopher J. Flanagan (25%)
3. Jennifer Yommer (12.5%)
4. Martha Foss (12.5%)
5. Joseph M Birckhead (25%)

A majority of the active beneficiaries shall be required for any vote under the Trust Agreement.

XI. Governing Law

This Agreement shall be governed by the laws of the State of Maine, including the Maine Uniform Trust Code.

XII. Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall survive.

XIII. Entire Agreement

This Agreement, together with its attached Exhibits, constitutes the complete agreement of the parties.

XIV. Exhibits

The following Exhibits are attached to and incorporated into this Agreement:

- Exhibit A: Betsy Young Forfeiture and Lifetime Use Right Agreement
- Exhibit B: Transfer of Beneficial Interest -- Mary Jean Foss to
Jennifer Yommer and Martha Foss
- Exhibit C: Transfer of Beneficial Interest -- Jane E Birckhead to
Joseph M Birckhead, with Diana E Birckhead forfeiture
- Exhibit D: Spousal Rights Clarification
- Exhibit E: Simplified Future Trustee Succession Mechanism

XV. Signatures

Each undersigned party acknowledges that they have read and understand the terms of this Agreement.

Current Beneficiaries:

Mary Jean Foss

Signature: _____

Date: _____

Address: _____

John M. Flanagan

Signature: _____

Date: _____

Address: _____

Jane E Birckhead

Signature: _____

Date: _____

Address: _____

Elizabeth (Betsy) Young

Signature: _____

Date: _____

Address: _____

Christopher J. Flanagan

Signature: _____

Date: _____

Address: _____

Successor Beneficiaries and Forfeiting Party:

Jennifer Yommer

Signature: _____

Date: _____

Address: _____

Martha Foss

Signature: _____

Date: _____

Address: _____

Joseph M Birckhead

Signature: _____

Date: _____

Address: _____

Diana E Birckhead

Signature: _____

Date: _____

Address: _____

Affected Persons:

Edward Young

Signature: _____

Date: _____

Address: _____

Jack Young

Signature: _____

Date: _____

Address: _____

Successor Co-Trustees:

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Notary Acknowledgement

STATE OF _____

COUNTY OF _____

On _____, 2026, before me, _____ (Notary Public), pers

I certify under PENALTY OF PERJURY under the laws of the State of _____ that

WITNESS my hand and official seal.

Signature: _____ (Seal)

Print Name: _____

My Commission Expires: _____